



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 21 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12523

EXPIRATION DATE: September 1, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Department of the Army
Alexandria, Virginia
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of a small quantity of a Class 8 material (lithium hydroxide) in non-DOT specification packagings. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.212 in that a non-DOT specification packaging is authorized.
5. BASIS: This emergency exemption is based on the application of the Department of The Army dated July 27, 2000 submitted in accordance with § 107.117 and a determination that it is necessary for immediate national security.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Lithium hydroxide, solid	Class 8	UN 2680	II

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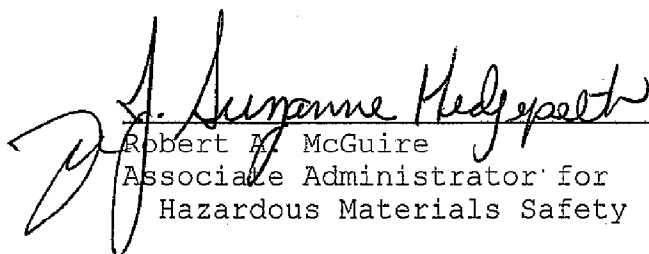
7. SAFETY CONTROL MEASURES: PACKAGING - The inner packaging is a Grade 316 stainless steel cylindrical pressure vessel (identified as a Sorbent Bed Assembly, LS Drawing 5823623H) containing approximately 3.1 pounds of lithium hydroxide, solid. The containment vessel has a burst pressure of 600 psig. The Sorbent Bed Assembly is installed within a larger assembly identified as the Trace Contaminant Control Subassembly (TCCS) Assembly (LMSS Drawing 5823550D). The entire TCCS unit is overpacked in a wooden shipping container.
8. SPECIAL PROVISIONS: A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or change are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle
10. MODAL REQUIREMENTS: None specified by this exemption
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: JKO